

Section B — Chapter 4

The Supreme Court

Class 10 - Total History & Civics Solutions

Multiple Choice Questions

Question 1

What is the maximum number of Judges that can be appointed in the Supreme Court, excluding the Chief Justice of India?

1. 30
2. 33
3. 34
4. 28

Answer

33

Question 2

What is the minimum period for which a citizen has to be the judge of a High Court or of two or more such courts in succession in order to be appointed as a judge of Supreme Court?

1. 5 years
2. 10 years
3. 2 years
4. 7 years

Answer

5 years

Question 3

What is the term of office of a judge of the Supreme Court?

1. Until he attains 63 years

2. Until he attains 70 years
3. Until he attains 60 years
4. Until he attains 65 years

Answer

Until he attains 65 years

Question 4

The appellate jurisdiction extends to

1. Constitutional cases
2. Criminal cases
3. Civil cases
4. All of the above

Answer

All of the above

Question 5

The minimum number of judges to hear and decide a case involving interpretation of the Constitution shall be

1. Ten
2. Four
3. Five
4. Seven

Answer

Five

Question 6

As a "Court of Record" the Supreme court has the power to

1. punish for contempt of itself
2. fine for collusion of opposing parties
3. declare evidence as indisputable
4. confer titles to appellants.

Answer

punish for contempt of itself

Question 7

What is the full form of "PIL"?

1. Public Interest Law
2. Public Interest Litigation
3. People's Interest Litigation
4. People's Interest Law.

Answer

Public Interest Litigation

Question 8

A detained person has not been produced before the magistrate within 24 hours of arrest. Which legal remedy is available to him/her?

1. Writ of Mandamus
2. Writ of Quo Warrants
3. Writ of Habeas Corpus
4. Writ of Prohibition.

Answer

Writ of Habeas Corpus

Question 9

If the Supreme Court declares a law made by the Central Government as null and void, which power is used by it?

1. Revisory Jurisdiction
2. Judicial Review
3. Advisory Jurisdiction
4. All of the above.

Answer

Judicial Review

Short Answer Questions

Question 1

Who determines the strength of the Supreme Court?

Answer

The Parliament determines the strength of the Supreme Court.

Question 2

By whom are the Judges of the Supreme Court appointed and how?

Answer

A group of senior Supreme Court judges headed by the CJI would make recommendations to the President on who should be appointed as a judge of the Supreme Court. The CJI is required to consult the four senior most judges of the Supreme Court before making any recommendation to the President of India in this regard. This came to be known as the Collegium System which allows a college of persons (judges) to appoint judges.

Question 3

With reference to the judiciary, what is meant by the term 'impeachment'? On what grounds can a judge of the Supreme Court be removed from office?

Answer

A Judge of the Supreme Court cannot be removed from office except by an order of the President on the ground of proved misbehaviour or incapacity. This charge needs to be proved only by a joint address by both houses of Parliament and supported by a two-third majority of members present and voting. The word 'proved' is very important. It means that an allegation has been thoroughly examined by some impartial tribunal. This procedure is known as impeachment.

A Judge of the Supreme Court cannot be removed from office except by an order of the President on the ground of proved misbehaviour or incapacity.

Question 4

Who decides the salaries and other emoluments of the Judges of the Supreme Court? Under what circumstances can the salaries and allowances of the Judges of the Supreme Court be reduced?

Answer

The salaries and other emoluments of the Judges of Supreme Court are decided by the President of India according to Article 125 of the Constitution of India. The salaries of judges cannot be reduced except during the period of financial emergency. Their salaries and allowances are charged to the Consolidated Fund of India and so are not subject to vote of Parliament.

The salaries of the Judges cannot be reduced except during periods of financial emergency.

Question 5

Name the types of jurisdiction of the Supreme Court. In case of violation of the Fundamental Rights of individuals, which type of jurisdiction of the Supreme Court is applicable?

Answer

The three types of jurisdiction of the Supreme Court are-

1. Original Jurisdiction
2. Appellate Jurisdiction
3. Advisory Jurisdiction

In case of violation of the Fundamental Rights of individuals, the Original jurisdiction of the Supreme Court is applicable.

Question 6

Mention any one power of the Supreme Court which is not enjoyed by other courts. What happens if either the Parliament or a State Legislature passes any law that is against the Constitution?

Answer

One power of the Supreme Court, which is not enjoyed by other Courts, is that only Supreme Court has the right to revise its earlier decisions.

The Supreme Court has the power to review laws passed by the Union or State legislatures. If either the Parliament or a State Legislature passes any law that is against the Constitution, the Supreme Court can declare the law 'ultra vires' or null and void. This power is referred to as the power of judicial review.

Question 7

What is meant by the term 'Writ'? Name any two writs issued by the Supreme Court.

Answer

A writ is an order from a judicial authority asking a person to perform some act or refrain from performing an act.

Two writs issued by the Supreme Court are-

1. Writ of Prohibition
2. Writ of Certiorari

Question 8

Who is the protector and final interpreter of the Constitution?

Answer

The Supreme Court of India is the protector and final interpreter of the Constitution.

Question 9

Mention two types under which an appeal in a criminal case lies to the Supreme Court.

Answer

Two types under which an appeal in a criminal case lies to the Supreme Court are-

1. Cases without the certificate of the High Court.
2. Cases with the certificate of the High Court.

The certificate of the High Court is not required in a case:

1. where the High Court has reversed the judgement of acquittal given by the Lower Court and punished the accused with a death sentence.
2. which is withdrawn by the High Court from a Subordinate Court and sentenced the accused to death.

Question 10

State the difference between the Original jurisdiction and the Appellate jurisdiction.

Answer

The differences between the Original jurisdiction and the Appellate jurisdiction are as follows-

Original jurisdiction	Appellate jurisdiction
Original Jurisdiction means the power to hear and determine a dispute in the first instance; i.e., those cases which cannot be moved in any court other than the Supreme Court.	Appellate Jurisdiction means the power to hear a case on appeal after special leave to appeal against the judgement by any court in the country.

Original jurisdiction	Appellate jurisdiction
It deals with Centre-State or Inter-State disputes, protection of fundamental rights, transfer of cases from lower courts and interpretation of Constitution.	The appellate jurisdiction extends to civil and criminal cases.

Structured Questions

Question 1

The Supreme Court is the apex court in the entire judicial set up in India. In this context answer the following questions:

- What is meant by the term Single Integrated Judicial System?
- Mention three kinds of cases which come under appellate jurisdiction of the Supreme Court.
- Mention the types of cases that come under Original jurisdiction.

Answer

(a) Under our Constitution the judiciary is a single integrated system of courts for the Union and the states with the Supreme Court at the apex. By the single integrated system we mean-

- The Supreme Court is the head of the entire system and not only supervises but also exercises control over the functioning of other courts.
- There are no separate sets of laws and a single civil and criminal system operates throughout the country.
- All cases coming from the Lower Courts can be taken to the High Court and ultimately to the Supreme Court, by way of appeal.

Below the Supreme Court stand the High Courts of different States and under each High Court there is a hierarchy of other subordinate courts.

(b) Three kinds of cases which come under appellate jurisdiction of the Supreme Court are:

- Constitutional Cases** — All matters irrespective of the nature, where a certificate is issued by a High Court that it involves an important point of law and needs interpretation of the Constitution, can be brought before the Supreme Court. If the High Court refuses to give a certificate on such a case the Supreme Court can grant special leave of appeal.
- Civil cases** — Appeals in civil matters lie to the Supreme Court, if the High Court certifies:
 - that the case involves a substantial question of law of general importance, and
 - that the question needs to be decided by the Supreme Court

3. **Criminal Cases** — Two types of appeals in criminal cases lie in the Supreme Court.
 - i. Cases with the certificate of the High Court
 - ii. Cases without the certificate of the High Court. The certificate of the High Court is not required in a case:
 - a. Where the High Court has reversed the judgement of acquittal given by the Lower Court and punished the accused with a death sentence.
 - b. A case which is withdrawn by the High Court from a Subordinate Court and sentenced the accused to death.

(c) The types of cases that come under Original jurisdiction of Supreme Court are as follows:

1. **Centre-State or Inter-State Disputes** — The Supreme Court has been given exclusive original jurisdiction in any dispute:
 - i. between Government of India and one or more States
 - ii. between Government of India and any State or States on one side and one or more States on the other
 - iii. between two or more States
2. **Protection of Fundamental Rights** — The original jurisdiction also extends to cases of violation of the Fundamental Rights of individuals and the court can issue several writs for the enforcement of these rights.
3. **Transfer of Cases from Lower Courts** — The Supreme Court may transfer to itself cases from one or more High Courts, if these involve questions of law or cases are of great importance. The Supreme Court may transfer cases from one High Court to another in the interest of Justice.
4. **Interpretation of Constitution** — All cases where interpretation of the Constitution is required can be directly filed in the Supreme Court. The Supreme Court has the power of exclusive jurisdiction in regard to questions as to Constitutional validity of central laws.

Question 2

The independence of the judiciary is necessary in a federal democratic set-up. In this context, describe the part played by the following:

- (a) Security of Tenure of Office.
- (b) Security of Salary and Allowances of the Judges.
- (c) Power to punish for Contempt of itself.

Answer

(a) A Judge can remain in office till he has attained the age of 65 years. He can be removed by the President on the ground of "proved misbehaviour or incapacity."

(b) Judges' salaries, allowances, etc., shall not be changed to their disadvantage during their term of office. The salaries of the Judges cannot be reduced except during periods of financial

emergency. Their salaries and allowances are charged on the Consolidated Fund of India and so are not subject to vote of Parliament.

(c) The Supreme Court can punish for the contempt of court if a person or authority makes an attempt to lower its authority.

Question 3

The Supreme Court has extensive jurisdiction. In this context answer the following:

(a) What is meant by 'Appellate Jurisdiction'? Name two types of cases in which an appeal shall lie to the Supreme Court.

(b) What do you understand by advisory functions of the Supreme Court? State the types of cases where the Supreme Court may be required to express its opinion.

(c) What is meant by Revisory Jurisdiction of the Supreme Court?

Answer

(a) Appellate Jurisdiction means the powers to grant special leave to appeal against the judgement delivered by any court in the country. The appellate jurisdiction extends to Constitutional, civil and criminal cases.

Two types of cases in which an Appeal shall lie to the Supreme Court are-

1. Constitutional cases
2. Civil cases

(b) The Supreme Court has advisory jurisdiction (to give its opinion) on any question of law or fact of public importance as may be referred to it for consideration by the President of India.

The Supreme Court may be required to express its opinion in two classes of matters, in an advisory capacity:

1. Any question of law may be referred to the Supreme Court if the President considers that the question is of public importance and it is necessary to obtain the opinion of the Supreme Court. Such opinion of the Supreme Court is advisory and not binding on the Government nor is it executable as a judgement of the Supreme Court.
2. Disputes arising out of pre-Constitution treaties and agreements which are excluded from original jurisdiction by Article 131.

(c) The Supreme Court under Article 137 is empowered to review any judgement or order made by it with a view to removing any mistake or error that might have crept in the judgement or order. This is because the Supreme Court is a court of record and its decisions are of evidentiary value and cannot be questioned in any court.

Question 4

Discuss how the Constitution has ensured that the Supreme Court acts as:

- (a) Custodian of the Constitution.
- (b) Guardian of the Fundamental Rights.
- (c) A Court of Records and its implication.

Answer

(a) All cases where interpretation of the Constitution is required can be directly filed in the Supreme Court.

1. The Supreme Court has the power of exclusive jurisdiction in regard to questions as to Constitutional validity of central laws.
2. The Supreme Court is the interpreter of the Constitution and its decision is final.
3. It has the power to review laws passed by the Union or State legislatures.
4. The Supreme Court can declare a law 'ultra vires' or null and void, if it is against the letter and spirit of the Constitution or contravenes any provision of the Constitution. This power is referred to as the power of judicial review.
5. The minimum number of Judges to hear and decide a case involving interpretation of the Constitution shall be five.
6. The Supreme Court has the power to review all National and State laws and executive orders and declare them null and void, if they go against the provisions of the Constitution.

(b) The original jurisdiction of Supreme Court extends to cases of violation of the Fundamental Rights of individuals and the court can issue several writs for the enforcement of these rights.

1. Any citizen whose rights are violated may move the Supreme Court for the enforcement of the rights.
2. The Supreme Court has power to issue orders or writs, in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari for the enforcement of any of the Fundamental Rights.
3. The Constitution prohibits the State from making any law which takes away or abridges the Fundamental Rights.
4. If it does so, the law shall be declared null and void by the Supreme Court.

(c) A Court of Record is a court whose judgements are recorded for evidence and testimony.

1. The judgements are in the nature of 'precedents', i.e., the High Courts and other Courts are bound to give a similar decision in a similar case. They are not to be questioned when they are produced before any subordinate court.

2. The Supreme Court shall be a "Court of Record" and shall have all the powers of such a court including the power to punish for contempt of itself.
3. The Court of Record has two implications:
 - (i) Its judgements and orders are preserved as record. These can be produced in any court as precedents.
 - (ii) If a person commits a contempt of court, the court has the authority to punish him. No authority can deprive the court of this right.

Question 5

Supreme Court has many functions to protect the interests of all citizens. In this context, answer the following questions:

- (a) What is meant by Judicial Review?
- (b) What is the significance of the power of Judicial Review?
- (c) Mention three ways in which the Constitution ensures the independence of the Judges of the Supreme Court.

Answer

(a) The Supreme Court is the interpreter of the Constitution and its decision is final.

1. It has the power to review laws passed by the Union or State legislatures.
2. The Supreme Court can declare a law 'ultra vires' or null and void, if it is against the letter and spirit of the Constitution or contravenes any provision of the Constitution. This power is referred to as the power of judicial review.

(b) The Constitution has provided for a balance of powers between the Centre and the States. If the Union government or the State go beyond their limits, the Supreme Court can settle the dispute.

1. In a written Constitution a law may be ambiguously worked. The question of interpretation of the Constitution is bound to arise and the Supreme Court only has the power of original jurisdiction.
2. The legislature may not possess the wisdom, experience and impartiality which are needed to explain what the law means.

This function can be best performed by the Supreme Court.

(c) Three ways in which the Constitution ensures the independence of the Judges of the Supreme Court are-

1. **Appointment of Judges** — Every Judge of the Supreme Court is appointed by the President after consultation with the Cabinet as well as the Judges of Supreme Court and

High Court. Thus, the judiciary and the executive are involved in the appointment of Judges.

2. **Security of Tenure** — A Judge can remain in office till he has attained the age of 65 years. He can be removed by the President on the ground of "proved misbehaviour or incapacity."
3. **Punishment for Contempt of Court** — The Supreme Court can punish for the contempt of court if a person or authority makes an attempt to lower its authority.

Picture Study

Question 1

Study the figure and answer the following questions:



- (a) Identify the building in the picture. Where is it located? What is the position of this court in the entire judicial set up in India?
- (b) State three qualifications required to be the judge of this court.
- (c) How does this court maintain the sanctity of the Constitution of India?

Answer

(a) The figure shows the Supreme Court of India. It is located in New Delhi.

Under our Constitution the judiciary is a single integrated system of courts for the Union and the states with the Supreme Court at the apex. The Supreme Court is the head of the entire system and not only supervises but also exercises control over the functioning of other courts.

(b) A person is not qualified for appointment as a judge of the Supreme Court unless he is a citizen of India, and

1. has been for at least five years a Judge of a High Court or of two or more such courts in succession; or
2. has been for at least ten years an advocate of a High Court or of two or more such courts in succession; or
3. is, in the opinion of the President, a distinguished jurist.

(c) All cases where interpretation of the Constitution is required can be directly filed in the Supreme Court.

1. The Supreme Court has the power of exclusive jurisdiction in regard to questions as to Constitutional validity of central laws.
2. The Supreme Court is the interpreter of the Constitution and its decision is final.
3. It has the power to review laws passed by the Union or State legislatures.
4. The Supreme Court can declare a law 'ultra vires' or null and void, if it is against the letter and spirit of the Constitution or contravenes any provision of the Constitution. This power is referred to as the power of judicial review.
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